



BERNHARDT RILEY
— ATTORNEYS AT LAW —

August 30, 2025

Sent via certified mail and e-mail:

Kairos Living, LLC
c/o CT Corporation System, Registered Agent
1200 S. Pine Island Road
Plantation, FL 33324
Email: moveouts@kairosliving.com

RE: Settlement Demand Regarding Security Deposit and Post-Move-Out Charges
Property Address: 226 Shadow Street NW, Port Charlotte, FL 33952

To Whom It May Concern:

Please be advised that this firm represents Mr. Christopher Eastman in connection with his tenancy at the above-referenced property. This correspondence serves as a formal demand for resolution of the ongoing dispute regarding Mr. Eastman's \$2,225.00 security deposit and your claimed post-move-out balance. Kindly direct all future correspondence regarding this matter to the undersigned.

Background

Mr. Eastman entered into a lease agreement with Kairos Living for the subject property, which extended through April 30, 2025. On February 7, 2025, he provided written notice of his intent to vacate effective April 15, 2025. Kairos confirmed receipt of this notice on February 10, 2025. On April 15, 2025, Mr. Eastman vacated the premises and surrendered possession. Utility records, as well as your own request for his forwarding address on that date, corroborate the vacate date.

Legal Analysis

On May 30, 2025—forty-five (45) days after Mr. Eastman's vacate date—Kairos issued a Notice of Intention to Impose a Claim on the Security Deposit. Florida Statute §83.49(3)(a) requires landlords to provide written notice of intent to impose a claim within thirty (30) days of the tenant vacating the premises. Failure to do so results in forfeiture of the right to retain any portion of the security deposit. Accordingly, Kairos' May 30 notice was untimely and legally ineffective.

Personal Injury Criminal Defense Debt Defense Real Estate Litigation Business Formation

Palm Harbor
2706 Alternate US-19 N.
Suite 213
Palm Harbor, FL 34683

Clearwater
13575 58th St N.
Clearwater, FL 33760

Tampa
1228 E. 7th Avenue
Tampa, FL 33605

Northwest Florida
495 Grand Blvd. #206
Miramar Beach, FL 32250

www.BRFlorida.com

As a result, Mr. Eastman is legally entitled to the full return of his \$2,225.00 security deposit. Despite this statutory entitlement, Kairos' June 18, 2025 accounting letter applied Mr. Eastman's \$2,225.00 deposit toward alleged damages and asserted a remaining balance of \$7,418.47.

Mr. Eastman disputes these alleged damages in their entirety. The charges rely primarily on estimates rather than receipts, and no photographic evidence of actual damage was provided. Many of the claimed items appear to reflect routine turnover costs and hurricane-related issues, which are not properly chargeable to tenants under Florida law. Accordingly, the landlord has failed to meet its burden of proof with respect to any deductions.

Nevertheless, Mr. Eastman recognizes that continued litigation or collection activity poses an ongoing burden for both parties.

Settlement Demand

In the interest of resolving this matter efficiently and avoiding further dispute, Mr. Eastman hereby demands that Kairos agree to the following terms:

1. Kairos shall retain the \$2,225.00 security deposit in full.
2. Kairos shall waive the asserted balance of \$7,418.47 in its entirety.
3. Kairos shall provide written confirmation that Mr. Eastman's account is settled at \$0.00 and that no further amounts are due.
4. Kairos shall confirm in writing that no negative credit reporting has been or will be made and that any collection placement related to this matter will be withdrawn or deleted.
5. Kairos shall confirm that no future claims, actions, or demands will be pursued against Mr. Eastman arising from his tenancy.

This settlement offer is made in good faith to achieve a mutually beneficial resolution without resort to further legal proceedings. If accepted, both parties may proceed with closure of the matter without additional cost or exposure.

Deadline for Response

Please provide a written response confirming acceptance of these terms within ten (10) business days of your receipt of this letter. If Kairos declines or fails to respond, Mr. Eastman reserves all rights under Florida law, including pursuit of the full refund of his security deposit, statutory damages, attorney's fees, and costs.

We look forward to your prompt confirmation that this matter is resolved on the above terms. Please direct all communications to the undersigned at (727) 275-9575 or via email at trey@brflorida.com, with copy to lourdes@brflorida.com.

Sincerely,

/s/ *Trey Dahl*

Lawrence Montrey Dahl III, Esq.
Division Attorney
Bernhardt Riley, Attorneys at Law, PLLC
Attorney for Christopher Eastman